

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF THE BRONX****GORDON WARREN,**

Plaintiff

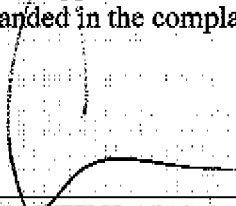
- against -

**THE CITY OF NEW YORK,
P.O. BRENDAN BERGIN (SHIELD# 3110)**

Defendant.

Index No. _____
Purchased _____
Plaintiff designates The Bronx
County as the place of trialThe basis of the venue is
where the tort arose**SUMMONS****TO THE ABOVE NAMED DEFENDANT:**

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
February 15, 2019
MARTINDALE & ASSOCIATES, PLLC
By: Conway C. Martindale II
Attorneys for Plaintiff
380 Lexington Avenue, 17th Floor
New York, New York 10168
(212)405-2233

Defendant's Address:

**CORPORATION COUNSEL OF THE
CITY OF NEW YORK**

100 Church Street

New York, New York 10007

OFFICER BRENDAN BERGIN (SHEILD # 3110)

52nd PRECINCT

3016 Webster Avenue

Bronx, NY 10467

**SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY****GORDON WARREN****Plaintiff,****Index No.
Verified Complaint****- against -****THE CITY OF NEW YORK,
P.O. BRENDAN BERGIN (SHIELD# 3110)****Defendant.**

Plaintiff GORDON WARREN, by his attorneys MARTINDALE &
ASSOCIATES, PLLC, by CONWAY C. MARTINDALE II, principal, complaining of
the Defendant, respectfully shows to this Court and alleges the following upon
information and belief:

PARTIES

1. At all times relevant herein, Defendant THE CITY OF NEW YORK (hereinafter referred to as "CITY"), was and still is a municipal corporation organized and existing under and by virtue of the laws of the State of New York.
2. Upon information and belief, all New York Police Department (hereinafter referred to as "NYPD") officers mentioned herein, including Police Officer Brendan Bergin (hereinafter referred to as "BERGIN") were, at the time of the occurrence, police officers of Defendant CITY, and at all times herein were acting in such capacity as the agents, servants, and employees of the defendant CITY.

3. At all times relevant herein, Plaintiff GORDON WARREN is a citizen of the United States and a resident of Bronx County in the City and State of New York.

PROCEDURAL POSTURE

4. Within 90 days after the incident, which occurred at approximately 3:30am on August 25, 2016, in and around Bailey Avenue and Kingsbridge Terrace, Bronx, New York, Plaintiff served a Notice of Claim in writing sworn to on his behalf upon the Defendant CITY, by delivering a copy thereof to the officer designated to receive such process personally, which Notice of Claim advised the Defendant CITY of the nature, place, time, and manner in which the claim arose, and the items of damage and injuries sustained so far as was then determinable.
5. At least thirty days have elapsed since the service of the claim prior to the commencement of this action and adjustment of payment thereof has been neglected or refused, and this action has been commenced within one year and ninety days after the happening of the event upon which the claims are based.
6. A 50-H hearing has been held.
7. The Plaintiff has duly complied with all conditions precedent to the commencement of this action.

FACTS

8. Paragraphs 1-7 are incorporated by reference as fully set forth herein.
9. In the early morning of August 25, 2016, WARREN and his friend Jesse were on their way back to their neighborhood (the Kingsbridge section of Bronx County) from a night out at a local Bronx restaurant.

10. WARREN had consumed alcohol that night, and had his friend Jesse drive WARREN's vehicle back to their neighborhood in the vicinity of Bailey Avenue and Kingsbridge Terrace; WARREN sat in the passenger seat.
11. Upon reaching the neighborhood, Jesse informed WARREN that he had to go upstairs to his apartment to speak to his girlfriend.
12. WARREN acknowledged and remained in the vehicle in the passenger seat with the motor running.
13. Roughly 5 minutes later, around 4am, NYPD officers, including BERGIN, approached WARREN's vehicle and asked him what he was doing.
14. WARREN explained to the officers that he was waiting for his friend Jesse to come back downstairs.
15. The officers, including BERGIN, then instructed WARREN to exit the vehicle.
16. WARREN refused to exit the vehicle, stating that he wasn't doing anything wrong.
17. Upon refusing to exit the vehicle, the officers once again instructed WARREN to exit the vehicle. This time, WARREN informed the officers he would only exit when a "white shirt" officer arrived on the scene.
18. BERGIN and the other officer remained by the passenger side door for approximately five minutes when a higher ranking officer wearing a white shirt arrived on the scene.
19. Upon the higher ranking officer arriving, WARREN exited the vehicle and was asked to take a breathalyzer test, which he refused due to the fact that he was sitting in the passenger seat.

20. Upon refusing to take the test, WARREN was arrested and taken to the 52nd Precinct.
21. WARREN remained at the 52nd Precinct for a few hours, until being removed to central booking in Bronx County.
22. WARREN remained in central booking until being arraigned on DUI charges at about 9:00pm of the 25th of August.
23. WARREN was released on his recognizance after being arraigned, and went back and forth to court, all the while maintaining his innocence, until the matter was dismissed on January 24, 2018.
24. During the duration of the case, WARREN was informed by his Legal Aid lawyer, that the officers involved in his arrest, including BERGIN, were under investigation for framing two other individuals for a bogus DWI arrest.
25. A news story reported in the Daily News on November 19, 2017 by Shayna Jacobs, documented the aforementioned matter.
26. Due to the arrest, WARREN lost his CDL license which he used to make a living as a truck driver, missing out on potentially hundreds of thousands of dollars in salary.
27. As a result of being arrested by NYPD officers, including BERGIN, Plaintiff WARREN suffered monetary loss as well as emotional distress.

FIRST CAUSE OF ACTION: FALSE ARREST

28. Paragraphs 8-27 are incorporated by reference as fully set forth herein
29. BERGIN arrested WARREN intentionally, and WARREN at all times was aware he was being arrested and did not consent to being arrested.
30. As a result of being arrested by BERGIN and the NYPD officers, WARREN suffered psychological injuries, including emotional distress.

SECOND CAUSE OF ACTION: FALSE IMPRISONMENT

31. Paragraphs 1-30 are incorporated by reference as though fully set forth herein.
32. The officers who arrested the Plaintiff, as described in paragraphs 8-27, intended to confine him. WARREN was conscious of his confinement and did not consent to it. Moreover, the confinement was not privileged or authorized by any warrant, order, or other legal right.

THIRD CAUSE OF ACTION: ABUSE OF PROCESS

33. Paragraphs 1-32 are incorporated by reference as though fully set forth herein.
34. In arresting WARREN as described in paragraphs 8-27, the arresting NYPD officers, including BERGIN were motivated by an ulterior purpose to do harm, without justification or economic or social excuse.
35. In arresting WARREN as described in paragraphs 8-27, the arresting NYPD officers, including BERGIN, sought either a detriment to WARREN or a

collateral advantage to themselves that is outside of the legitimate ends of making an arrest.

36. As a result of defendants' abuse of process, WARREN sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.

FOURTH CAUSE OF ACTION: MALICIOUS PROSECUTION

37. Paragraphs 1-36 are incorporated by reference as though fully set forth herein.
38. In arresting WARREN as described in paragraphs 8-27, BERGIN acted with malice and without probable cause.
39. As a result of being maliciously prosecuted by BERGIN, Plaintiff sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.

FIFTH CAUSE OF ACTION: 42 U.S.C. 1983 and 1988

40. Paragraphs 1-39 are incorporated by reference as though fully set forth herein.
41. Upon information and belief, the officers who illegally arrested WARREN were at all times relevant duly appointed and acting officers of the City of New York Police Department.
42. At all times mentioned herein, said police officers were acting under color of law, to wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York.

43. Plaintiff is and at all times relevant herein a citizen of the United States and resident of Bronx County in the State of New York. He brings this cause of action pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.

44. The defendant CITY OF NEW YORK is a municipality duly incorporated under the laws of the State of New York.

45. On or about August 25, 2016, as described in paragraphs 8-27, armed officers of the NYPD, while effectuating the seizure of the Plaintiff, searched, seized, Plaintiff, and grabbed the Plaintiff's person, without a court authorized arrest or search warrant. The Plaintiff was falsely arrested and maliciously prosecuted without the police officers possessing probable cause to do so.

46. The above actions of the arresting officers caused the Plaintiff to be deprived of the following rights under the United States Constitution:

- (a) Freedom from illegal search and seizure,
- (b) Freedom from false arrest,
- (c) Freedom from malicious prosecution.

47. The arresting officers subjected the Plaintiff to such deprivations, either in a malicious or reckless disregard of the Plaintiff's rights or with deliberate indifference to those rights under the Fourth and Fourteenth Amendments of the United States Constitution.

48. The direct and proximate result of the officers' acts are that the Plaintiff has suffered severe and permanent psychological injuries. Plaintiff was forced to endure pain and suffering to his detriment.

SIXTH CAUSE OF ACTION: NEGLIGENCE

49. Paragraphs 1-48 are incorporated by reference as though fully set forth herein.
50. At all times hereinafter mentioned, the aforesaid false arrest, false imprisonment, abuse of process, malicious prosecution, were caused solely by the negligence of Defendant CITY, its agents, servants and/or employees.
51. As a result of the negligence by Defendant CITY, the Plaintiff sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.

SEVENTH CAUSE OF ACTION: NEGLIGENT SUPERVISION

52. Paragraphs 1-51 are incorporated by reference as though fully set forth herein.
53. Defendant CITY has grossly failed to train and properly supervise its police officers regarding the law of arrest, search and seizure, particularly when its police officers lack a valid arrest or search warrant and where an individual, such as the Plaintiff in the instant case, has not committed a crime and has not resisted arrest.
54. Defendant CITY was negligent by failing to implement a policy within its police department instructing police officers not to arrest individuals such as the Plaintiff unless there is a court authorized warrant or probable cause.

55. Defendant CITY is negligent due to its failure to implement a policy with its police department or actively enforce the law, if any of the following is lacking:

(a) Probable cause must be present before individuals such as the Plaintiff herein can be arrested.

56. The foregoing acts, omissions and systematic failures are customs and policies of Defendant CITY which caused its police officers to falsely arrest, maliciously prosecute, illegally search and seize Plaintiff.

EIGHTH CAUSE OF ACTION: NEGLIGENT HIRING

57. Paragraphs 1-56 are incorporated by reference as though fully set forth herein.

58. Defendant CITY was negligent because prior to and at the time of the acts complained of herein, due to the prior history of the police officers mentioned herein, the CITY knew or should have known of the bad disposition of said police officers or had knowledge of facts that would have put a reasonably prudent employer on inquiry concerning their bad disposition and the fact that these officers were not suitable to be hired and employed by the CITY and that due to their lack of training, these officers should have had adequate supervision so that they would not arrest innocent individuals, or conduct illegal searches.

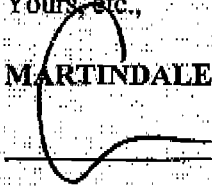
WHEREFORE, Plaintiff GORDON WARREN demands judgment against the Defendant in the sum of \$10,000,000, together with the costs and disbursements

of this action as well as any other additional relief this Court deems just and proper.

Dated: New York, New York

February 23, 2019

Yours, etc.,


MARTINDALE & ASSOCIATES, PLLC

By: Conway C. Martindale II
Attorneys for Plaintiff
380 Lexington Avenue, 17th Floor
New York, NY 10168
(212)405-2233

VERIFICATION

The undersigned, the Plaintiff in this action, affirms under the penalties of perjury:

That deponent is the plaintiff in the within action; that deponent has read the foregoing **VERIFIED SUMMONS AND COMPLAINT** and knows the contents thereof; that the same is true to deponent's own knowledge, except as to the matters therein stated to be alleged upon information and belief, and that as to those matters, deponent believes those to be true.

The grounds for deponent's belief as to all matters not stated upon his knowledge are investigations which his attorney has made or has caused to be made concerning the subject matter of this action, and statements of parties or witnesses herein.

Dated: New York, New York
February 23, 2019


GORDON WARREN

Subscribed and sworn to before me, this ^{March} 20th day of ~~February~~ 2019

Notary Public **FRANK C MARTINDALE II**
CLERK OF SUPREME COURT, STATE OF NEW YORK
Registration No. 02MA6383802
Qualified in New York County
My Commission Expires: 11/26/23

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF THE BRONX**

Index No:

GORDON WARREN,

Plaintiff,

-against-

**THE CITY OF NEW YORK
P.O. BRENDAN BERGIN (SHIELD# 3110)**

Defendant.

SUMMONS & COMPLAINT

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**TO: CORPORATION COUNSEL OF THE
CITY OF NEW YORK**
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